

25LBCV01501 25LBCV01501

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BACKGROUND

On

May 20, 2025, Plaintiff Paul Marshall ("Plaintiff") commenced this action against Ambeo LLC dba Airman Flight Training, Alpha Lima Papa LLC, and Andy Patel. The operative Second Amended Complaint ("SAC") asserts claims for conversion, claim and delivery (writ of possession) and breach of contract.

On

May 23, 2025, the Court denied Plaintiff's ex parte application for a temporary restraining order but set an OSC re: preliminary injunction and briefing schedule. It is unclear from the record what happened, but the Court subsequently signed the temporary restraining order as discussed below.

On

June 11, 2025, Plaintiff filed a "reply" in support of OSC re: preliminary injunction.

On

July 9, 2025, the Court signed Plaintiff's temporary restraining order. On September 2, 2025, the Court granted Plaintiff's request to amend the restraining order to add Echelon Flight Training as a restrained party.

As

of August 5, 2026, no opposing brief has been filed by any defendant.

DISCUSSION

Applicable

Law

The purpose of a preliminary injunction is to preserve the status quo pending a decision on the merits. (Major v. Miraverde Homeowners Ass'n. (1992) 7 Cal. App. 4th 618, 623.) In deciding whether or not to grant a preliminary injunction, the court looks to two factors, including "(1) the likelihood that the plaintiff will prevail on the merits, and (2) the relative balance of harms that is likely to result from the granting or denial of interim injunctive relief." (White v. Davis (2003) 30 Cal.4th 528, 553-54.) The factors are interrelated, with a greater showing on one permitting a lesser showing on the other. (Dodge, Warren & Peters Ins. Services, Inc. v. Riley (2003) 105 Cal.App.4th 1414, 1420.) However, the party seeking an injunction must demonstrate at least a reasonable probability of success on the merits. (IT Corp. v. County of Imperial (1983) 35 Cal.3d 63, 73-74.) The party seeking the injunction bears the burden of demonstrating both a likelihood of success on the merits and the occurrence of irreparable harm. (Savage v. Trammell Crow Co. (1990) 223 Cal.App.3d 1562, 1571.) Irreparable harm may exist if the plaintiff can show an inadequate remedy at law. (CCP § 526(a).)

"The granting or denying of a preliminary injunction does not constitute an adjudication of the ultimate rights in controversy." (Cohen v. Board of Supervisors (1985) 40 Cal.3d 277, 286; see also Yee v. American National Ins. Co. (2015) 235 Cal.App.4th 453, 457-458 ["a preliminary injunction is not a determination on the merits...."].) Furthermore, a preliminary injunction ordinarily cannot take effect unless and until the party applying for it provides an undertaking to the effect that the applicant will pay to the party enjoined such damages as the party may sustain by reason of the injunction, if the court finally decides that the applicant was not entitled to the injunction [see CCP § 529(a)]. (City of South San Francisco v. Cypress Lawn Cemetery Assn. (1992) 11 Cal.App.4th 916, 920.)

Analysis

A. Briefing

As

a preliminary matter, no defendant has filed an opposing brief. On June 11,

2025, Plaintiff filed a “reply” in support of the preliminary injunction, but no opposition was filed so it is unclear what Plaintiff is “replying” to.

B. Terms of the Temporary Restraining Order

The Temporary Restraining Order

(“TRO”) states that Defendants Andy Patel, Ambeo LLC, Alpha Lima Papa LLC, and Echelon Flight Training are temporarily restrained from operating Airman Flight Training, and from using, accessing, transferring, profiting from, or concealing the Redbird MCX Flight Simulator. The TRO states that it is supported by declarations showing Plaintiff's substantial investment, exclusion from business control, and high likelihood of irreparable harm including asset concealment, loss of business opportunity, and the risk of flight. The TRO finds that Plaintiff has established probable success on the merits of his claims for conversion, unjust enrichment, and breach of implied contract, based on his 50% personal investment in the simulator, promise of ownership, and exclusion from all benefit while Defendants continue to operate the business without compensation. The Court found that Plaintiff lacks access to the simulator and associated financial records, and that the location of the simulator at a private airport and the Defendant's potential international ties create a material risk of concealment or dissipation of the property or profits derived therefrom.

C. Likelihood of Success on the Merits

The SAC alleges that on or about

December 2021, Plaintiff entered into a written agreement with Anand Patel/Airman Flight Training LLC to purchase a Redbird MCX Flight Simulator. (SAC, ¶ 11.) Plaintiff contends that despite making full payment, Defendants failed to transfer title or honor Plaintiff's ownership rights, and instead wrongfully retained possession of the Simulator. (Id., ¶ 14.) Plaintiff alleges that Anand Patel and Airman Flight Training LLC transferred or attempted to transfer the Simulator to Essence Flight Academy LLC without Plaintiff's knowledge or consent, in order to generate cash and conceal assets. (Id., ¶ 15.)

Here, in Plaintiff's “reply,” the only brief filed in support of extending this TRO into a preliminary injunction,

Plaintiff does not make any argument regarding his likelihood of prevailing on the merits on his three claims in the SAC. While Plaintiff states that he “has submitted ample evidence,” courts are entitled to assistance from the movant, and referring the Court to previously submitted evidence without guidance or argument is insufficient. Plaintiff must engage with the elements of the claims and make argument as to why he will prevail on each claim in order to carry his burden to demonstrate a likelihood of success on the merits. Plaintiff fails to do so.

Thus, Plaintiff fails to carry his burden to establish a likelihood of success on the merits.

D. Balance of Harms

For the second factor, the court must consider “the interim harm that the plaintiff would be likely to sustain if the injunction were denied as compared to the harm the defendant would be likely to suffer if the preliminary injunction were issued.” (Smith v. Adventist Health System/West (2010) 182 Cal.App.4th 729, 749.) “Irreparable harm” generally means that the defendant’s act constitutes an actual or threatened injury to the personal or property rights of the plaintiff that cannot be compensated by a damages award. (See Brownfield v. Daniel Freeman Marina Hospital (1989) 208 Cal.App.3d 405, 410.)

Plaintiff argues that without court intervention, the ongoing operation of Airman Flight Training LLC creates an active risk of irreparable harm as the simulator could be damaged, concealed, or continued to be used to generate revenue without Plaintiff’s consent or knowledge. (Plaintiff’s June 11, 2025 Brief, p. 2.) In balancing the equities, Plaintiff argues that Defendants face only a temporary pause in use of one simulator, while Plaintiff faces ongoing deprivation of a \$49,000+ investment. (Ibid.) Plaintiff contends that injunctive relief is the only adequate remedy to prevent further loss. (Ibid.)

Here,
Plaintiff raises a

valid argument that he may suffer irreparable harm from a loss of his investment in the simulator should Defendants be free to damage or conceal the simulator, and Defendants would face only a temporary pause in use of a single simulator. (Ibid.) Defendant does not rebut this evidence.

Accordingly, the balance of harms weighs in favor of granting the preliminary injunction. However, having considered Plaintiff's complete failure to establish a likelihood of success on the merits, the Court DENIES the request for preliminary injunction.

E. Undertaking

As discussed above, because Plaintiff failed to establish a basis for injunctive relief, the Court need not discuss the necessity of an undertaking.

CONCLUSION

Plaintiff's Request for Preliminary Injunction is DENIED.